

Panel Opinion

Opinion and scope

On September 9, 2025, the court grants the petition to the extent stated below, vacates the agency’s Convention Against Torture disposition, and remands for further proceedings. The Board and immigration judge discussed the asserted sources of harm separately, but their decisions do not reveal an assessment of the combined pathways supported by the record. Their treatment of complaint routing and official response likewise leaves the court unable to discern application of the acquiescence standard.

The court decides only the legal sufficiency of the agency’s analysis on the certified record. It does not find that A.R.M. is more likely than not to be tortured, that any official will acquiesce, or that any disputed link among Unit Four, Harbor League, and registry personnel is true. Those questions remain for agency factfinding under the proper framework. Record composition and petition timing are addressed separately so the limited remand is not mistaken for a broader evidentiary ruling.

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Record composition

The corrected certified record consists of AR1–AR238. P-7, A.R.M.’s eighteen-page declaration, was lodged before the merits hearing and admitted without an authenticity or timeliness objection. AR117, AR138, AR139, AR161, and AR164 establish that status. The February 18 transmission omitted the declaration, and the Rule 16(b) stipulation, file audit, exact object digest, and corrected certification restored the unchanged file at AR33–AR50.

T.R.’s eight-page declaration stands differently. It was signed after the January 13 Board order and was never presented to the immigration judge or Board. The March 5 supplementation order properly left it outside the administrative record, and the court has not relied on it to review the CAT disposition. Correction of P-7 and exclusion of the later proffer follow their different provenance. Neither ruling decides the truth or weight of either declaration.

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Petition timing

The Board entered its final order on January 13, 2025. A.R.M. tendered the petition on February 11, day twenty-nine, with every required item except the attached order copy. The clerk issued a curable deficiency notice that day, and counsel supplied the complete order on February 12 within the stated cure period. The docket preserved February 11 as the initial receipt rather than treating the cure as a new petition.

Riley v. Bondi later held that Section 1252(b)(1) is a nonjurisdictional claims-processing rule that ordinarily must be timely invoked. The institutional respondent has not invoked the rule against the actual tender and confirmed that position at argument. Because the petition was in any event received within thirty days, the court denies the timing challenge described in the issue statement without deciding any hypothetical day-thirty-one filing or any circumstance not present here.

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Governing CAT framework

An applicant for CAT protection must establish that torture in the proposed country of removal is more likely than not. The regulations require consideration of all evidence relevant to possible future torture, including past harm, relocation, rights conditions, and other country evidence. Torture must involve a public official acting officially or occur with official consent or acquiescence; acquiescence includes awareness, including willful blindness, followed by breach of a legal duty to intervene.

On judicial review, agency findings of fact are conclusive unless any reasonable adjudicator would be compelled to conclude otherwise. That deferential standard does not permit the court to excuse application of the wrong legal framework or an explanation that omits legally significant evidence so completely that meaningful review is impossible. The remedy for such an analytical defect is ordinarily vacatur and remand, leaving the agency to make the required findings in the first instance.

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Aggregation error

A.R.M. alleged risk from Unit Four officers, Harbor League participants with access to procurement and official channels, and registry personnel capable of identifying returnees. The agency decisions described reasons that each source, considered alone, might not make torture more likely than not. They relied on elapsed time, lawful departure, uncertainty about contractor control, lack of an individual registry flag, and the existence of formal safeguards.

Rodriguez-Arias requires more than separate source-by-source conclusions when the record supports possible interaction among feared actors. The decisions do not evaluate whether contractor information could renew Unit Four interest, whether registry identification could supply location information, or whether overlapping routes alter the total probability. We express no view on the strength of those links. The absence of a combined analysis, not disagreement with a particular factual finding, requires the agency to reconsider aggregate risk on remand.

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Unit Four and Harbor League evidence

The record includes A.R.M.'s account of prior Unit Four detention, contemporaneous clinic evidence, employment and procurement materials, messages attributed to Harbor League speakers, and testimony concerning shared vendor and official channels. The agency credited a serious past encounter but emphasized elapsed time, lawful departure, and the absence of a current case document. It treated the contractor evidence as uncertain and distinct from official interest.

Those observations may bear on probability and weight, but the decisions do not address the asserted informational connection between the contractor network and Unit Four. A.R.M. argued that the same procurement dispute motivated both the official detention and later threats, and that private participants could supply officials with identifying information. The agency may reject that connection on supported findings. It must first consider the relevant evidence together and explain why any link is credited, discounted, or immaterial.

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Registry and return-identification pathway

The country report and testimony describe registry systems used to identify returnees, unsupported query samples, employment registration, household links, and a liaison route through regional offices. The agency noted the absence of an A.R.M.-specific flag and uncertainty about whether every query reaches Merrow. It also relied on freedom of movement and the lack of proven nationwide Unit Four surveillance when discussing relocation.

The missing question is how registry identification interacts with the other asserted risks. A pathway need not show that registry personnel themselves intend torture if their access may transmit location information to an actor alleged to pose that harm. Conversely, generalized system access does not establish that A.R.M. will be queried or located. The agency must determine the supported probability and geographic reach, address relocation with the linked pathways in view, and explain the resulting aggregate assessment.

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Official acquiescence

The agency relied on Kalyrian prohibitions against torture, an inspector hotline, an external review desk, and reported discipline. Those safeguards are relevant. The acquiescence inquiry, however, also requires attention to evidence of actual awareness or willful blindness and a breach of the duty to intervene. A.R.M. pointed to the prior detention, the complaint's route to the implicated regional command, the absence of an independent interview, and the continuing "regional response pending" status.

The Board mentioned that the complaint reached regional command but did not engage the routing code, Pel's testimony, or the claimed absence of protective action. It instead emphasized the lack of direct senior-official approval and A.R.M.'s failure to use a national hotline. The regulation does not limit awareness to express authorization by senior officials. On remand the agency must apply the full standard and weigh both formal safeguards and evidence about how the complaint process operated in this case.

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Meaningful consideration

An agency need not discuss every document or repeat every argument. It must, however, show that it considered evidence central to the governing legal questions. Here, the decisions provide no discernible evaluation of the source map connecting the feared actors, the complaint sample and routing history, or the file-specific status showing no independent interview. Those items are not collateral details; A.R.M. offered them to establish aggregation and official awareness.

The omission prevents the court from determining whether the agency discounted the evidence on credibility or weight, found it factually unsupported, treated it as legally irrelevant, or simply overlooked it. The court cannot supply a rationale that the agency did not give. Meaningful-consideration review therefore supports the same vacatur and remand required by the aggregation error. The agency remains free to reach the same or a different ultimate result after addressing the evidence under the correct standards.

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No appellate factfinding

Nothing in this opinion establishes the truth of the disputed complaint-routing interpretation, the identity of the July speakers, the claimed contractor-official link, an individual registry flag, future location, or the probability of renewed detention. The court also does not decide the comparative weight of the declarations, expert reports, clinic material, messages, institutional evidence, or formal safeguards. Section 1252(b)(4)(B) assigns those factual judgments to the agency subject to the statutory review standard.

Our holding is narrower: the decisions under review do not demonstrate that the agency assessed all supported feared sources in combination or meaningfully applied the acquiescence standard to central evidence. On remand, the agency should permit the parties to address those questions within the lawful scope of its proceedings, make findings it considers necessary, and provide an explanation that allows review. The court retains no role in supervising factual development beyond the judgment and mandate.

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Extra-record proffer

The court's March 5 order denying supplementation remains undisturbed. T.R.'s declaration was created after the Board order and was not part of the administrative record on which that order was based. The opinion therefore draws no merits proposition from PA1–PA8, makes no credibility determination about T.R., and does not use the asserted February residence search to strengthen the aggregate-risk or acquiescence analysis.

The separate treatment of the proffer does not prevent the agency from applying any lawful procedure available to later events if a party properly invokes that procedure. We express no view on whether such a procedure exists, what predicates it requires, or how the new account should be assessed. The pending petition is resolved on AR1–AR238. Remand follows analytical defects in the existing agency decisions, not the content of the later proffer.

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Disposition

The court recognizes the Rule 16(b) correction of the unchanged P-7 declaration and denies administrative-record treatment to the post-order proffer. It vacates the agency's aggregate-risk, acquiescence, and meaningful-consideration determinations and remands those matters for analysis consistent with this opinion. It denies the timing challenge to the actual February 11 petition tender and grants the petition to the extent necessary to effect the stated vacatur and remand.

All other questions are left open or denied to the extent inconsistent with that relief. The court does not direct a grant of withholding or deferral, make a CAT probability finding, or order the agency to credit a particular factual assertion. A separate judgment will state the seven components of the disposition. The clerk shall issue the opinion and judgment on September 9, 2025 and calculate post-judgment dates from that entry.